

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Smith	Team: Squad #16	CCRB Case #: 201508575	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/08/2015 5:15 PM	Location of Incident: McGuinness Boulevard at Freeman Street	Precinct: 94	18 Mo. SOL 4/8/2017	EO SOL 4/8/2017	
Date/Time CV Reported Fri, 10/09/2015 9:51 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/09/2015 9:51 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anatoli Eltsov	20935	950377	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Anatoli Eltsov	Abuse: PO Anatoli Eltsov questioned § 87(2)(b)	
B.POM Anatoli Eltsov	Abuse: PO Anatoli Eltsov damaged § 87(2)(b)'s property.	
C.POM Anatoli Eltsov	Abuse: PO Anatoli Eltsov stopped the vehicle in which individuals were occupants.	
D.POM Anatoli Eltsov	Abuse: PO Anatoli Eltsov threatened to arrest § 87(2)(b)	

Case Summary

On October 9, 2015, § 87(2)(b) filed this complaint with the CCRB via phone.

On October 8, 2015, at approximately 5:15 p.m., PO Anatoli Eltsov stopped § 87(2)(b)'s vehicle in the vicinity of McGuinness Boulevard and Freeman Street in Brooklyn for a VTL violation. When § 87(2)(b) provided PO Eltsov with his documentation, PO Eltsov questioned the authenticity of § 87(2)(b)'s driver's license (**Allegation A**). While speaking with § 87(2)(b) PO Anatoli Eltsov told § 87(2)(b) that the license was fraudulent while bending and folding it repeatedly (**Allegation B**). PO Eltsov pulled over five or six unidentified motorists in order to compare their licenses to that of § 87(2)(b) (**Allegation C**). When § 87(2)(b) insisted that his license was real and that he had gotten it from the Department of Motor Vehicle (DMV), PO Eltsov asked § 87(2)(b) "Do you want to go to jail?" (**Allegation D**). § 87(2)(b) was issued summons # § 87(2)(b) for § 87(2)(b) (Board Review 01). There is no video evidence in this case.

This case was reassigned to Investigator Daniel Smith on November 25, 2015, upon the departure of Investigator Michael Fenton.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- This report has been submitted pending the results of a FOIL request sent on December 8, 2015 for any notice of claim filed in regard to the incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) is party (Board Review 03).
- PO Eltsov has been a member of service for over four years and has had five CCRB complaints with six allegations during his tenure. None of these complaints were substantiated § 87(2)(g)
[REDACTED]

Findings and Recommendations

Allegation A – Abuse of Authority: PO Anatoli Eltsov questioned § 87(2)(b)

§ 87(2)(g)
[REDACTED]

§ 87(2)(b) alleged that PO Eltsov questioned him about the validity of his license in his initial complaint (Board Review 04), during his interview (Board Review 05), and in a document that he

wrote on the night of October 8, 2015 after his encounter with PO Eltsov (Board Review 06). § 87(2)(b) was using an ‘Enhanced Driver’s License’ at the time of the incident on October 8, 2015, as seen in the photograph of § 87(2)(b) s license taken at the CCRB on October 13, 2015 (Board Review 08). § 87(2)(g)

PO Eltsov stated in his November 2, 2015, interview at the CCRB that his only recollection of his encounter with § 87(2)(b) is from his Memo Book Entry (Board Review 07). PO Eltsov stated that he did not recall questioning § 87(2)(b) about his license despite viewing a photograph of § 87(2)(b) s license during his interview (Board Review 08). Nonetheless, during his interview, PO Eltsov stated that he was not familiar with an ‘Enhanced Driver’s License.’

§ 87(2)(g)

“Police officers must have an objective credible reason to request information from an individual,” People v. Hollman, People v. Saunders, 581 N.Y.S.2d 619 (February 20, 1992) (Board Review 09).

§ 87(2)(g)

Allegation B – Abuse of Authority: PO Anatoli Eltsov damaged § 87(2)(b) s property.

§ 87(2)(g)

§ 87(2)(b) alleged that PO Eltsov repeatedly bended and folded his license to test its authenticity in his initial complaint (Board Review 04), during his interview (Board Review 05), and in a document that he wrote on the night of October 8, 2015 after his encounter with PO Eltsov (Board Review 06). § 87(2)(g)

Conversely, PO Eltsov stated in his November 2, 2015, interview at the CCRB that his only recollection of his encounter with § 87(2)(b) is from his Memo Book Entry (Board Review 07). Despite viewing a photograph of § 87(2)(b) s license during his interview, PO Eltsov stated that

he did not independently recollect the incident with § 87(2)(b) (Board Review 08). PO Eltsov also stated that he did not recall bending and folding § 87(2)(b)'s license. PO Eltsov stated that he was trained on how to detect a fraudulent license, and that this training directs him to fold a driver's license to test its authenticity. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Patrol Guide Procedure 200-02 states that officers pledge to “protect the lives and property of our fellow citizens and impartially enforce the law” (Board Review 10).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: PO Anatoli Eltsov stopped the vehicle in which individuals were occupants.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) said in multiple statements (Board Review 04) that PO Eltsov stopped five or six other motorists to ask if they had a license comparable to § 87(2)(b)'s. The final person that PO Eltsov stopped did have a comparable license, and § 87(2)(b) alleged that PO Eltsov folded that license and showed it to § 87(2)(b) saying, “See?” PO Eltsov (Board Review 07) stated that he could not recall stopping any other motorists during his encounter with § 87(2)(b)

§ 87(2)(b) provided no names or contact information for the other individuals that PO Eltsov allegedly stopped. § 87(2)(g)

§ 87(2)(g)

Allegation D – Abuse of Authority: PO Anatoli Eltsov threatened to arrest § 87(2)(b)

§ 87(2)(g)

In his CCRB statement (Board Review 04), § 87(2)(b) said that after PO Eltsov asked him where he had gotten the license and he replied by saying that it was from the DMV, PO Eltsov asked him, “Do you want to go to jail?” § 87(2)(b) replied that he did not.

PO Eltsov, in his statement (Board Review 07), did not recall asking § 87(2)(b) if he wanted to go to jail or if there was any discussion about placing § 87(2)(b) under arrest. There were no other corroboration of either party’s account of the incident.

§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date